

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CARMELA BONA VOGLIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STANLEY MATEO, Shield No. 8797, POLICE OFFICER
STEVEN DROLUK, and SERGEANT ANDREW
PARFENOFF, and POLICE OFFICER JOHN DOES #1-
10 (names and number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
January 15, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Stanley Mateo, Shield No. 8797, Narcotics Borough Brooklyn South
Police Officer Steven Droluk, Narcotics Borough Brooklyn South
Sergeant Andrew Parfenoff, Narcotics Borough Brooklyn South

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

CARMELA BONA VOGLIA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STANLEY MATEO, Shield No. 8797, POLICE OFFICER
STEVEN DROLUK, and SERGEANT ANDREW
PARFENOFF, and POLICE OFFICER JOHN DOES #1-
10 (names and number of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff CARMELA BONA VOGLIA, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 6, 2017, at approximately 6:00 a.m., plaintiff Carmela Bonavoglia was lawfully present visiting her elderly ex mother in-law inside of her home located at 1430 East 85th Street, Brooklyn, New York, when the defendant police officers unlawfully entered the home without probable cause or any legal justification. The defendant officers unlawfully searched plaintiff's person and the entire building and were informed immediately after entering the apartment that plaintiff did not live in the apartment. The defendants assaulted, battered, sexually harassed, unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to accuse plaintiff of committing a crime or violating the law in any manner. The defendants transported plaintiff against her will to the 69th Precinct where she was unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy holding cell for many hours. Plaintiff suffered physical injuries to her hands and wrists due to the handcuffs being applied by defendants in an unreasonably tight manner and the officers refused to loosen the handcuffs. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff by initiating and continuing a criminal prosecution against her for crimes she did not commit and for which defendants lacked probable cause to accuse her of committing. Plaintiff suffered from severe anxiety and the experience of being arrested for her first time caused her to suffer from severe anxiety. After the

handcuffs were removed from plaintiff's wrists she fell down to the ground and hurt her back. At approximately 3:00 pm on April 6, 2017 plaintiff was issued a Desk Appearance Ticket ordering her to appear in Kings County Criminal Court on June 19, 2017 and was released from custody. On June 19, 2017 plaintiff appeared in Kings County Criminal Court and was arraigned and charged with possession of a controlled substance, a crime she did not commit and for which the officers lacked any factual basis to accuse her of committing. The officers maliciously initiated and continued the criminal prosecution against plaintiff without probable cause by providing the District Attorney's Office with false, misleading and incomplete information about the facts that allegedly formed their basis for arresting and prosecuting plaintiff. Plaintiff was required to appear in Criminal Court on approximately 3 occasions to address the false criminal charges brought against her and all charges were dismissed and sealed in their entirety on October 17, 2017. Plaintiff paid a private criminal defense attorney \$2,350 to represent her throughout the malicious criminal prosecution. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, assaulted, battered, subjected her to the use of excessive force, denied her the right to due process/ right to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff CARMELA BONA VOGLIA is and was at all times relevant herein a resident of the State of New York.

3. Defendant POLICE OFFICER STANLEY MATEO, Shield. 8797, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER STANLEY MATEO, Shield. 8797, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

5. Defendant POLICE OFFICER STANLEY MATEO, Shield. 8797, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER STEVEN DROLUK, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER STEVEN DROLUK, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

8. Defendant POLICE OFFICER STEVEN DROLUK, is being sued in his individual and official capacity.

9. Defendant SERGEANT ANDREW PARFENOFF, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT ANDREW PARFENOFF, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn South command.

11. Defendant SERGEANT ANDREW PARFENOFF, is being sued in his individual and official capacity

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about April 9, 2018.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. By way of background, plaintiff Carmela Bonavoglia has been separated from her ex-husband and father of her children, for approximately 20 years and officially divorced him in 2013.

23. On April 6, 2017 plaintiff's ex-husband lived with his mother, Cynthia Bonavoglia in a private two story home located at 1430 East 85th Street, Brooklyn, New York, that Cynthia Bonavoglia owned.

24. Cynthia Bonavoglia lived on the second floor of the house and her son lived on the first floor.

25. Plaintiff did not live at 1430 East 85th Street, Brooklyn, New York.

26. Upon information and belief, prior to April 6, 2017, defendants conducted a narcotics investigation into the alleged sale of narcotics by plaintiff's ex-husband from the first floor of 1430 East 85th Street, Brooklyn, New York.

27. . Prior to April 6, 2017 defendants had never seen plaintiff present at 1430 East 85th Street, Brooklyn, New York and did not have any factual basis to suspect that she lived there or was in any way involved in narcotics activity at that location.

28. Upon information and belief, the narcotics investigation conducted by defendants prior to April 6, 2017 established that plaintiff's ex-husband was the only person engaged in narcotics activity at 1430 East 85th Street, Brooklyn, New York and that the narcotics were only sold from the first floor of the home where plaintiff's ex-husband lived and not from the second floor of the home where Cynthia Bonavoglia lived.

29. In lieu of the evidence collected by defendants during their investigation of plaintiff's ex-husband, defendants were able to obtain a court issued search warrant to search only the first floor of 1430 East 85th Street, Brooklyn, New York and that specifically named plaintiff's ex- husband as the target of the search warrant.

30. Prior to entering and searching 1430 East 85th Street, Brooklyn, New York on April 6, 2017 defendants were fully aware from the text of the search warrant that they were not permitted to search the second floor of the home and that any occupants of the home other than plaintiff's ex-husband likely had no involvement in any illegal narcotic activity on the premises.

31. Plaintiff Carmela Bonavoglia remained close to her ex-husband's mother, Cynthia Bonavoglia, after she separated from and divorced her husband.

32. On April 5, 2017 plaintiff visited Cynthia Bonavoglia at her home on the second floor of 1430 East 85th Street, Brooklyn, New York because she had not visited Cynthia

Bonavoglia for a few years, Cynthia Bonavoglia was in her 90s and although she was healthy plaintiff was concerned that there may not be many more opportunities to visit and spend time with Cynthia Bonavoglia.

33. On April 5, 2017 at approximately 6:30 pm plaintiff arrived at Cynthia Bonavoglia's home to visit with her.

34. Plaintiff slept at Cynthia Bonavoglia's home in a spare bedroom on the second floor that night and she intended to head back to her home on Staten Island early the next morning on April 6, 2016.

35. On April 6, 2017 plaintiff woke up before 6:00 am with the intent of returning to her home on Staten Island.

36. Shortly after plaintiff got out of her bed she heard loud noises, and she walked downstairs to investigate what the noise was.

37. After plaintiff walked downstairs she witnessed the defendant police officers run into the house dressed in plain clothes, with their guns drawn and ordered everyone to put their hands up and to drop to the floor.

38. Plaintiff could barely see defendants because the lighting in the house was dark, defendants did not initially identify themselves as police officers and plaintiff became terrified because she thought the defendants were burglars and she feared the men were going to shoot her with the guns pointed at her.

39. Plaintiff complied with the defendants' order to get onto the floor.

40. Plaintiff later learned that the police officer defendants entered the first floor of the house pursuant to a search warrant they obtained from a judge before entering which permitted the officers to only search the first floor of the house and [plaintiff's ex-husband].

41. After plaintiff was on the ground the police officers and screamed, "This is a drug raid."

42. Upon learning that the men were police officers conducting a drug raid, plaintiff immediately advised the officers that she did not live in the home and was simply visiting her elderly ex-mother in law for one night.

43. Additionally, plaintiff showed the officers her NY State Driver's License containing her home address located on Staten Island.

44. When plaintiff advised the officers that she did not live at that home and provided them with proof that she did not live there the police officers were not surprised or confused about where she lived. In response to plaintiff's statement to the defendants that she

did not live in the house, the defendants acknowledged to plaintiff that they knew she did not live there.

45. Defendants observed that their presence in the home caused plaintiff to suffer from severe anxiety which could be clearly seen from the expressions on plaintiff's face and her demeanor.

46. Defendants knew that plaintiff was in no way associated with any of the criminal activity they were investigating at the home.

47. Defendant Mateo reassured plaintiff that the raid of the home had nothing to do with her, that everything was going to be okay, and that nothing was going to happen to her.

48. Defendant Mateo held plaintiff's hand, told her that she was not being handcuffed or arrested and that she should go outside in front of the house to get some fresh air.

49. Plaintiff walked out the front door of the home and sat on the front stoop in her pajamas and smoked a cigarette.

50. Plaintiff sat in front of the home alone and outside of the presence of any police officers on the front stoop for approximately 1/2 hour.

51. After sitting on the front stoop of the home for approximately ½ hour, Police Officer Mateo asked plaintiff to come back inside the house and plaintiff complied with the order.

52. When plaintiff walked into the home the defendant officers almost immediately placed handcuffs on plaintiff's wrists and told her that she had to come with them to their precinct so that the officers could run her ID to make sure there were no active warrants pending against her.

53. The defendant officers advised plaintiff that she would be immediately released from custody if she had no active warrants.

54. The defendants unlawfully handcuffed plaintiff and falsely arrested/imprisoned her without probable cause or any legal justification.

55. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess an objective factual basis to believe plaintiff committed a crime or violated the law.

56. At no time relevant herein did the defendant officers recover any illegal drugs, weapons or contraband from the possession, custody or control of plaintiff.

57. The defendant officers placed plaintiff in the rear, windowless portion of a police “paddy wagon” and the defendant officers drove around for 40 minutes and arrested several other individuals before they brought plaintiff to the 69th Precinct.

58. Plaintiff suffered severe anxiety and emotional damages during the transport in the van to the police precinct.

59. Furthermore, Carmella suffered very painful physical injuries during the van ride to the precinct.

60. Plaintiff was secured for transport in the van in a very unsafe and dangerous manner which was conducive to causing physical and emotional injuries to the prisoners being transported. The rear of the prisoner van has a bench which lines the 4 walls of the rear of the van. Additionally, there is a metal bar that runs around the 4 walls of the rear of the van on the walls several feet above the benches. Plaintiff was initially seated on one of the metal benches in the rear of the van and then she was rear handcuffed to the metal pole running along the wall behind her. Prisoners are handcuffed to the metal pole to secure them in the van while it is moving because without being attached to the pole and being rear handcuffed prevents the prisoners from bracing themselves to keep from falling or being flung across the van when the van stops short.

61. Initially the police officers handcuffed plaintiff to the pole behind her in an extremely tight and painful manner.

62. Plaintiff suffers from Carpel Tunnel Syndrome which caused the extremely tight handcuffs to be particularly painful to plaintiff’s wrists.

63. Plaintiff screamed to the defendant officers from the back of the van and asking them to loosen the handcuffs.

64. Plaintiff informed the officers that she had Carpel Tunnel Syndrome and that the handcuffs were unbearably tight and painful to her wrists and hands.

65. As a direct and proximate cause of the manner in which the handcuffs were applied to plaintiff’s wrists, plaintiff’s fingertips have been numb since the date she was arrested.

66. The handcuffs were applied to plaintiff’s wrists in an excessively tight manner and the handcuffs were not loosened when plaintiff requested them to be loosened.

67. The officers listened to plaintiff, but instead of loosening the handcuffs the officers decided to unhook the handcuffs from the metal pole so that she was rear handcuffed on the bench, but not attached to the pole.

68. After the officers unhooked her from the pole, plaintiff fell to the floor of the van several times during the remainder of the n van ride because she was no longer able to brace

herself when the van stopped. Plaintiff was knocked around the rear of the van and injured and bruised many parts of her body. Plaintiff was repeatedly hurt each time she fell.

69. Plaintiff fell to her knees which were already sore because she had surgery on her knees prior to this incident. Thus, falling to her knees in the van was painful and she continued to suffer from the pain from the falls for several weeks after she was arrested. When plaintiff fell to her side she injured her right leg and her back which was extremely painful for plaintiff because she had spinal fusion surgery on her back and has a broken rod in her back, making her back a very delicate part of her body that caused her severe pain by reinjuring it.

70. Defendant Police Officer Mateo began holding Carmella's hand again when they arrived at the 69th Precinct and he continued to hold her hand for most of the time she was at the precinct.

71. Defendant Officer Mateo continuously assured repeatedly that nothing would happen to her and that the officers were simply running her license and then she would be released.

72. The defendants unlawfully searched, fingerprinted, photographed, interrogated and detained plaintiff in a filthy holding cell for many hours while she was detained at the 69th Precinct.

73. At approximately 3:00 pm on April 6, 2017, the defendant officers issued plaintiff a Desk Appearance Ticket ordering her to appear in Kings County Criminal Court on June 19, 2017 by the officers and released from custody.

74. On June 19, 2017 plaintiff appeared in Kings County Criminal Court and was arraigned and charged with criminal possession of a controlled substance in the Seventh Degree, a crime she did not commit and for which the defendant officers lacked any factual basis to accuse her of committing.

75. The defendant officers maliciously initiated and continued the criminal prosecution against plaintiff without probable cause by providing the DA's Office with false, misleading and incomplete information about the facts that allegedly formed their basis for arresting and prosecuting plaintiff.

76. Specifically, the defendant officers falsified allegations against plaintiff that were communicated to the DA's Office that they "observed plaintiff sleeping in one of the bedrooms inside of the house where the arrest was made," and that the officers recovered a bottle containing 6 Hyromorphone pills from the top of a dresser in the room the officer observed her sleeping.

77. In fact, plaintiff was awake at the time the officers entered the home and she wasn't in a bedroom sleeping. Moreover, the bedroom that plaintiff slept in the night before the police raided the home was located on the second floor of the house, but the search warrant only gave the police officers authority to access and search the first floor of the home. All of

plaintiff's belongings remained on the second floor of the house when the officers arrived. To the extent the officers maintain that they complied with the terms of the search warrant and did not search the second floor of the house then it would have been impossible for them to have see plaintiff sleeping or any of her belongings located inside of the bedroom where she slept.

78. Plaintiff was legally prescribed Hydromorphone pills and always kept them in the prescription bottle.

79. At approximately 3:00 pm on April 6, 2017 plaintiff was issued a Desk Appearance Ticket ordering her to appear in Kings County Criminal Court on June 19, 2017 by the defendant officers and released from custody.

80. On June 19, 2017 plaintiff appeared in Kings County Criminal Court and was arraigned and charged with possession of a controlled substance, a crime she did not commit and for which the defendant officers lacked any factual basis to accuse her of committing.

81. The defendant officers maliciously initiated and continued the criminal prosecution against plaintiff without probable cause by providing the DA's Office with false, misleading and incomplete information about the facts that allegedly formed their basis for arresting and prosecuting plaintiff.

82. The criminal charges brought against plaintiff were ultimately dismissed and sealed in their entirety after plaintiff provided the DA's Office and the Court with the prescription for the Hydromorphone pills.

83. Plaintiff was required to appear in Criminal Court on 3 occasions to address the false criminal charges brought against her and all charges were dismissed and sealed in their entirety on October 17, 2017

84. Plaintiff paid a private criminal attorney \$2,350 to represent her in the criminal case to get the false charges brought against her were dismissed.

85. Plaintiff suffers from severe anxiety and the experience of being arrested and criminally prosecuted for the first time caused her to suffer from severe anxiety and frequent debilitating panic attacks.

86. Furthermore, plaintiff suffered severe anxiety attacks throughout the time she was unlawfully detained in police custody in this case. Additionally, her heartbeat increased significantly and her blood pressure became dangerously elevated.

87. After the handcuffs were removed from plaintiff's wrists she fell down and hurt her back.

88. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

89. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

90. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, assault, battery, excessive force, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

91. The unlawful search, false arrest/ imprisonment,

92. assault, battery, excessive force, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

102. Defendants lacked probable cause to search plaintiff.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

105. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

107. Defendants commenced and continued a criminal proceeding against plaintiff.

108. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

109. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

110. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

116. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

120. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 119 with the same force and effect as if more fully set forth at length herein.

121. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

122. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

123. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

124. In withholding/creating false evidence against plaintiff June Mabry, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

125. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

126. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

127. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

129. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. The use of excessive force by defendants by throwing plaintiff to the ground, pushing her, securing handcuffs on her wrists in an unreasonably tight manner, and handling her in an unreasonably rough manner was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

131. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

132. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

NINTH CAUSE OF ACTION

Assault

133. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 132 with the same force and effect as if more fully set forth at length herein.

134. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

135. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

136. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

137. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Battery

139. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 138 with the same force and effect as if more fully set forth at length herein.

140. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

141. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

142. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

143. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION**Negligence**

145. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 144 with the same force and effect as if more fully set forth at length herein.

146. Defendants owed a duty of care to plaintiff.

147. Plaintiff's physical injuries caused when she fell over in the van being transported to the precinct were caused defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior by improperly securing plaintiff in the van.

148. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

149. All of the foregoing occurred without any fault or provocation by plaintiff.

150. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

151. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

152. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION**Failure to Intervene**

153. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 152 with the same force and effect as if more fully set forth at length herein.

154. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

155. Defendants failed to intervene to prevent the unlawful conduct described herein.

156. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

157. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

158. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Carmela Bonavoglia demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 15, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 January 15, 2019

_____/s/
DAVID M. HAZAN